Shakeel Chaudhary vs The State Nct Of Delhi on 26 April, 2023

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 780/2023
SHAKEEL CHAUDHARY ..... Petitioner
Through: Ms. Sushma Sharma, Mr. Girish Kumar Sharma, Mr. Karan Verma, Ms. Aayushi Gaur and Ms. R. Sahil, Advs.

versus

THE STATE NCT OF DELHI ..... Respondent
Through: Ms. Richa Dhawan, APP for the State.

CORAM:
HON'BLE MR. JUSTICE ANISH DAYAL

ORDER

% 26.04.2023

1. This application has been filed seeking regular bail in FIR No.308/2022 PS Nangloi under Sections 420/467/471/468/120B/34 IPC. The status report has been filed which states that the case was registered on the complaint of one lady Kamlesh Chowdhary who was told that one Suneet Kumar Verma wanted to sell one of his properties at Mundka. Accused Suneet Kumar Verma alongwtih Ashok Jain and the petitioner met her husband, gained his trust and presented certain sale deed documents, which have been later alleged to be forged. Property documents were executed between the complainant and the accused Suneet Kumar Verma in lieu of which the complainant allegedly paid Rs.25 lacs through RTGS to Suneet Kumar Verma. It has been stated in the FIR that she paid the remaining Rs.40 lacs in cash at the said plot which was being proposed to be purchased.

2. Learned counsel for the petitioner has pointed that there is a discrepancy and in statement recorded under Section 161 Cr.P.C. the complainant states that when they went to the registration office, the cash amount of Rs.40 lacs was handed over to Suneet Kumar Verma who directed that it be handed over to the petitioner. Further, the petitioner has not been named in the FIR but has been roped in due to the said statement recorded under Section 161 Cr.P.C.

3. As per the status report, from the investigation it was found that Ashok Jain who is the owner of the said plot had prepared forged documents of this neighbouring plot in the name of Suneet Kumar Verma and mentioned to the complainant that Verma was the owner of the plot. It is alleged that the petitioner was a co-conspirator with the said Ashok Jain and Suneet Kumar Verma. Ashok Jain has since passed away and Suneet Kumar Verma is in judicial custody.

4. Learned counsel for the petitioner states that now a charge-sheet has been filed and investigation has completed and there would be no purpose to keep the petitioner in custody, as the matter has to

be finally proved in trial. The role of the petitioner is also not clear as per the said FIR except at the worst of having received the said cash amount on behalf of Suneet Kumar Verma.

5. Ld. APP has refuted the contentions of the petitioner stating that the petitioner was involved at every stage in the fraudulent property deal and has been the beneficiary of the received amounts and has pointed out to the CDR records which showed that the petitioner was in contact with co-accused Ashok Jain and Suneet Kumar Verma during the incident.

6. The petitioner has been in custody since 02nd June, 2022 and since the charge-sheet has been filed, there would be no purpose keeping the petitioner in custody any further. Further the petitioner is not the main accused but has been roped in as co-conspirator. The primary role in the alleged fraud was of Suneet Verms and Ashok Jain (now deceased). The evidence necessary was documentary in nature and has clearly been collected for the filing of the said charge-sheet.

7. In light of the above, and that the trial in the matter is likely to take some time, and it would not be prudent to keep the petitioner behind bars for an indefinite period, this Court finds it to be a fit case for grant of bail to the petitioner. Consequently, the petitioner is directed to be released on bail on furnishing a personal bond in the sum of Rs. 50,000/- with one surety of the like amount subject to the satisfaction of the Ld. Trial Court, further subject to the following conditions:

i. Petitioner will not leave the country without prior permission of the Court.

ii. Petitioner shall provide permanent address to the Ld. Trial Court. The petitioner shall intimate the Court by way of an affidavit and to the IO regarding any change in residential address.

iii. Petitioner shall appear before the Court as and when the matter is taken up for hearing.

iv. Petitioner shall join investigation as and when called by the IO concerned.

v. Petitioner shall provide all mobile numbers to the IO concerned which shall be kept in working condition at all times and shall not switch off or change the mobile number without prior intimation to the IO concerned. The mobile location be kept on at all times.

vi. Petitioner shall not indulge in any criminal activity and shall not communicate with or come in contact with any of the prosecution witnesses, the complainant/victim or any member of the complainant/victim's family or tamper with the evidence of the case.

Needless to state, but any observation touching the merits of the case is purely for the purposes of deciding the question of grant of bail and shall not be construed as an expression on merits of the matter.

8. Copy of the order be sent to the Jail Superintendent for information and necessary compliance.

9. Accordingly, the application is disposed of.

10. Order be uploaded on the website of this Court.

ANISH DAYAL, J.

APRIL 26, 2023/MK